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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
16/338,289	03/29/2019	Steffen Gunther Wiesner	1141/US/3	9889

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Ann Critchell-Ward
De Ruijterkade 154
Amsterdam, 1011 AC
NETHERLANDS

EXAMINER	
BOLOURCHI, NADER	

ART UNIT	PAPER NUMBER
2631	

NOTIFICATION DATE	DELIVERY MODE
11/25/2019	ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

patents@tomtom.com
tony@parklegal.com

Office Action Summary	Application No. 16/338,289	Applicant(s) Wiesner et al.	
	Examiner NADER BOLOURCHI	Art Unit 2631	AIA (FITF) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☑ Responsive to communication(s) filed on 29 March 2019.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☐ This action is **FINAL.** 2b) ☑ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

5) ☑ Claim(s) 1-16 and 18 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1-16 and 18 is/are rejected.

8) ☐ Claim(s) _____ is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

Application Papers

10)☑ The specification is objected to by the Examiner.

11)☑ The drawing(s) filed on 29 March 2019 is/are: a)☑ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☑ Notice of References Cited (PTO-892)

2) ☑ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date _____.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

DETAILED ACTION

Remarks

1. The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

2. This Office Action is responsive to Applicant's submission filed on 03/29/2019. Claims 1-16 and 18, of which claims 1, 16 and 18 are independent, were pending in this application and have been considered below.

Priority

3. Applicant's claim for the benefit of a prior-filed application under 35 U.S.C. 119(e) or under 35 U.S.C. 120, 121, or 365(c) is acknowledged.

Information Disclosure Statement

4. The references cited on the information disclosure statement (IDS) submitted on 03/29/2019have been considered and made of record by the examiner.

Specification

5. The lengthy specification has not been checked to the extent necessary to

determine the presence of all possible minor errors. Applicant's cooperation is requested in correcting any errors of which applicant may become aware in the specification.

6. The specification is objected to because of the following informalities:

- replace all the occurrence of the phrase **"behaviour"** with the phrase **--behavior--**.
- replace all the occurrence of the phrase **"analysing"** with the phrase **--analyzing--**.

Appropriate correction is required.

7. Applicant is reminded of the proper language and format for an abstract of the disclosure.

The abstract should be in narrative form and generally limited to a single paragraph on a separate sheet within the range of 50 to 150 words. It is important that the abstract **not exceed 150** words in length since the space provided for the abstract on the computer tape used by the printer is limited. The form and legal phraseology often used in patent claims, such as "means" and "said," should be avoided. The abstract should describe the disclosure sufficiently to assist readers in deciding whether there is a need for consulting the full patent text for details.

The language should be clear and concise and should not repeat information given in

the title. It should avoid using phrases which can be implied, such as, "The disclosure concerns," "The disclosure defined by this invention," "The disclosure describes," etc. It is recommended to delete numerical identifiers.

Claim Objections

8. Claims 1-15 are objected to because of the following informalities:

- replace the phrase **"the parameter"** (line 13 of claim 1) with the phrase **--the time dependent parameter--**, because its antecedent base is found on line 2 of claim 1.
- replace the phrase **"behaviour"** (line 2 of claim 2) with the phrase **--behavior--**.
- replace the phrase **"analysing"** (line 2 of claim 4) with the phrase **--analyzing--**.
- replace the phrase **"a plurality of segments"** (line 7 of claim 1; line 9 of claim 16, line 11 of claim 18) with the phrase --**the plurality of segments--**, because its antecedent base is found on line 4 of claim 1,line 5 of claim 16 and line 8 of claim 18.
- replace the phrase **"the segments"** (lines 9-10 of claim 1; lines 12-13 of claim 16; lines 13-14 of claim 18) with the phrase **–the plurality of segments--**, because its antecedent base is found on line 8 of claim 18, line 4 of claim 1 and line 5 of claim 16.
- replace the phrase **"for each group"** (line 14 of claim 1; line 16 of claim 16; line 18 of claim 18) with the phrase **--for the each group--**, because its antecedent base is found on line 12 of claim 1; line 14 of claim 16 and line 16 of claim 18.

Claims 2-15 are objected due to their dependency to the objected claim 1. Appropriate correction is required.

Claim Rejections - 35 USC § 112(b) or pre-AIA 35 USC § 35 USC § 112, second paragraph

Examiner Note: The Leahy-Smith America Invents Act (AIA) made technical changes to 35 U.S.C. § 112 that only apply to patent applications filed on or after on September 16, 2012.

The following is a quotation of 35 **U.S.C. 112(b)**:

> **(b) CONCLUSION - The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the inventor or a joint inventor regards as the invention.**

The following is a quotation of pre-AIA **35 U.S.C. 112**, second paragraph:

> **The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the applicant regards as his invention.**

9. Claim **1-16 and 18** are rejected under **35 U.S.C. 112(b)** or pre-AIA **35 U.S.C. 112**, second paragraph, as being indefinite for failing to particularly point out and distinctly claim the subject matter which the inventor or a joint inventor, or for pre-

AIA the applicant regards as the invention

Regarding claims 1, 16 and 18, claims recite the limitation **"the time dependence of a time dependent parameter"** (line 1 of claims 1; line 2 of claim 16; line 5 of claim 18). There is insufficient antecedent basis for this limitation in the claim.

Claims recite the limitation **"the time period"** (line 8 of claim 1; line 10 of claim 16; line 12 of claim 18). There is insufficient antecedent basis for this limitation in the claim.

Claims recite the limitation **"for the or each set of time periods"** (line 9 of claim 1; line 11 of claim 16; line 13 of claim 18), which is vague and indefinite. It is not clear what term "for the or each" is referring to which leaves the reader in doubt as to the meaning of the technical feature to which it refers to, thereby rendering the definition of the subject matter of the claim indefinite. It is recommended to replace the limitation with phrase --the each one of the at least one set of the plurality of different time periods-- (see line 9 of claim 1, line 7 of claim 16 and line 10 claim 18).

Claims recite the limitation **"for each of the time periods of the set of time periods"** (line 11 od claim 1; line 13 of claim 16; line 15 of claim 18). There is insufficient antecedent basis for this limitation in the claim. It is recommended to replace the

limitation with phrase -- for the each one of the at least one set of the plurality of different time periods-- (see line 6 of claim 1, line 7 of claim 13 and line 10 of claim 18).

Regarding claim 18, claim recites the limitation **"the segments of the group"** (lines 14 and 17 of claim 1; lines 17 and 19 of claim 16; lines 18 and 21 of claim 18). There is insufficient antecedent basis for this limitation in the claim. It is recommended to replace the limitation with phrase --the segments in each group of segments-- (see line 12 of claim 1, line 14 of claim 16 and line 16 of claim 18).

Claims recite the limitation **"the time dependence of the relative value of the time dependent parameter"** (line 15 of claim 1; line 18 of claim 16; line 19 of claim 18). There is insufficient antecedent basis for this limitation in the claim. It is recommended to replace the limitation with phrase --the time dependence of the time dependent parameter-- (see line 1 of claim 1, line 2 of claim 16 and line 5 of claim 18).

Regarding claims 16 and 18, claim recites the limitation **"the parking related parameter"** (line 15 of claim 16; line 17 of claim 18). There is insufficient antecedent basis for this limitation in the claim. It is recommended to replace the limitation with phrase -- the time dependent parameter--, because it is the parameter already defined in line 2 of claim 16 and line 5 of claim 18.

Regarding claims 2-15, claims are rejected due to their dependency to the rejected claim 1.

Allowable Subject Matter

10. Claims 1-16 and 18 would be allowable if rewritten or amended to overcome the rejection(s) under 35 U.S.C. 112, 2nd paragraph, and to overcome the objection set forth in this Office action.

11. As allowable subject matter has been indicated, applicant's reply must either comply with all formal requirements or specifically traverse each requirement not complied with. See 37 CFR 1.111(b) and MPEP § 707.07(a).

12. Any comments considered necessary by applicant must be submitted no later than the payment of the issue fee and, to avoid processing delays, should preferably accompany the issue fee. Such submissions should be clearly labeled "Comments on Statement of Reasons for Allowance."

Conclusion

13. **Examiner's note**: Reliance on the US Pre-Grant Publication (PG PUB), which is not part of the image file wrapper of the patent application, in prosecution is improper.

All references in the office action are to be made to the latest version on record of the patent application as filed not as published. The latest version on record of the patent application means the patent application as originally filed and modified by previously entered amendment(s)

14. The prior art made of record and not relied upon is considered pertinent to applicant's disclosure. **Schilling et al. (US 8,990,017 B2)**

Contact Information

15. Any inquiry concerning this communication or earlier communications from the examiner should be directed to Nader Bolourchi whose telephone number is (571) 272-8064. The examiner can normally be reached on M-F 8:30 to 4:30.

16. If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Dr. Shuwang Liu, SPE can be reached on (571) 272-3036. The fax phone number for the organization where this application or proceeding is assigned is (571) 273-8300.

17. Interviews are available via telephone and video conferencing using a USPTO web-based Video Conferencing and Collaboration Tool. To schedule an interview,

Applicants are encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

18. Communications via Internet e-mail are at the discretion of the applicant. See MPEP § 502.03. Without a written authorization by applicant in place, the USPTO will not respond via Internet e-mail to any Internet correspondence which contains information subject to the confidentiality requirement as set forth in 35 U.S.C. 122 and will not initiate communications with applicants via Internet e-mail. A paper copy of such correspondence will be placed in the appropriate patent application. Where a written authorization is given by the applicant, communications via Internet e-mail, other than those under 35 U.S.C. 132 or which otherwise require a signature, may be used. In such case, a printed copy of the Internet e-mail communications will be entered in the patent application file. A reply to an Office action may NOT be communicated by applicant to the USPTO via Internet e-mail. If such a reply is submitted by applicant via Internet e-mail, a paper copy will be placed in the appropriate patent application file with an indication that the reply is NOT ENTERED. The following is a sample authorization form which may be used by applicant:

The following is a sample authorization form which may be used by applicant:

"Recognizing that Internet communications are not secure, I hereby authorize the USPTO to communicate with me concerning any subject matter of this application by electronic mail. I understand that a copy of these communications will be made of record in the application file."

A written authorization may be withdrawn by filing a signed paper clearly identifying the original authorization. The following is a sample form which may be used by applicant to withdraw the authorization:

"The authorization given on_____, to the USPTO to communicate with me via the Internet is hereby withdrawn. I understand that the withdrawal is effective when approved rather than when received."

For authorization to Communications via Internet e-mail, Applicants are encouraged to use the Form PTO/SB/439 at https://www.uspto.gov/sites/default/files/documents/sb0439.pdf.

19. Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see http://pair-direct.uspto.gov. Should you have questions on access to the Private PAIR system, contact the Electronic

Business Center (EBC) at (866) 217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (in USA, or CANADA) or 571-272-1000.

/Nader Bolourchi/

Primary Examiner, Art Unit 2631